

25NNCV03018 25NNCV03018

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Case Number: 25NNCV03018 Hearing Date: September 4, 2026 Dept: B

Hon. Victor Avila, Dept B

Motion to Compel Destructive Testing; Request for Sanctions

Hearing Date: 9/4/26

CASE NO.: 25NNCV03018

CASE NAME: Virgel Standfill v. Southern California Edison Company

Moving Party: Plaintiff Virgel Standfill

Responding Party: Defendant Southern California Edison Company

Notice: Sufficient

Ruling:

GRANT.

NOTICE

The

Court is not requesting oral argument on this matter/motion. The Court is guided by California Rules of Court, Rule 3.1308(a)(1) whereby notice of intent to appear is requested. Unless the Court directs argument in the Tentative Ruling, no argument is requested and ANY PARTY SEEKING ARGUMENT SHOULD NOTIFY ALL OTHER PARTIES AND THE COURT BY 4:00 P.M. ON THE COURT DAY BEFORE THE HEARING of the party's intention to argue as to this matter/motion. The tentative ruling will

become the ruling of the court if no argument is received. Notice may be given either by email at BurDeptB@LACourt.org or by telephone at (818) 260-8422.

Parties

must appear on all other matters scheduled for this case.

BACKGROUND

This is a personal injury action arising from an explosion. On September 4, 2025, plaintiff Virgel Standfill (Plaintiff) filed a First Amended Complaint against defendants Southern California Edison Company (Defendant) and Edison International alleging their electrical meter (the Meter) caused an explosion which severely harmed Plaintiff.

On May 15, 2026, Plaintiff filed the instant motion seeking Court order compelling destructive testing of the Meter at issue. On August 24, 2026, Defendant filed an opposition. On August 28, 2026, Plaintiff filed a reply.

LEGAL

STANDARD

“Any party may obtain discovery within the scope delimited by Chapter 2 (commencing with Section 2017.010), and subject to the restrictions set forth in Chapter 5 (commencing with Section 2019.010), by inspecting, copying, testing, or sampling documents, tangible things, land or other property, and electronically stored information in the possession, custody, or control of any other party to the action”. (Code Civ. Proc., § 2031.010(a).)

“Unless otherwise limited by order of the court in accordance with this title, any party may obtain discovery regarding any matter”, not privileged, that is (1) relevant to the subject matter involved in the pending action and (2) appears reasonably calculated to lead to the discovery of admissible evidence. (Code Civ. Proc., § 2017.010.)

“A party may demand that any other party produce and permit the party making the demand, or someone acting on the demanding party’s behalf, to inspect and to photograph, test, or sample any tangible things that are in the possession, custody, or control of the party on whom the demand is made”. (Code Civ. Proc., § 2031.010(c).)

The court shall restrict the frequency or extent of use of a discovery method provided in Section 2019.010 if it determines that...the selected method of discovery is unduly burdensome or expensive, taking into account the needs of the case, the amount in controversy, and the importance of the issues at stake in the litigation. (Code Civ. Proc., § 2019.030(a)(2).)

DISCUSSION

Motion to Compel Destructive Test

Plaintiff

seeks a motion compelling Defendant to produce an electrical meter (the Meter) which exploded, severely burning Plaintiff. (Mot., p. 5.) Plaintiff argues that good cause exists for compelling production of the meter for destructive testing because the meter is central evidence and internal examination of the meter directly relates to the causation and/or origin of the incident and potential defect of the meter. (Ibid.) Whether internal components show electrical failure, arcing, heat damage, terminal deformation, conductor failure, contamination, debris paths, melting, or other failure evidence, Plaintiff argues it is directly relevant to their claims and Defendant's defenses. (Ibid.) Plaintiff argues that alternative inspections, i.e. visual inspection or CT imaging, are useful but do not allow full direct inspection of debris patterns and all the internal parts. (Ibid.) Plaintiff argues that Destructive testing of devices involved in electrical incidents is commonplace, and Courts recognize that destructive testing is an appropriate discovery tool in cases involving unique physical evidence. (Mot., pp. 4-5.) Plaintiff anticipates Defendant will argue that the proposed testing is not essential or properly tailored; and Plaintiff argues that the destructive testing is tailored to seek the cause of the explosion and Plaintiff need not prove the test is essential, only that it is relevant and reasonably calculated. (Mot., pp. 6-7.)

In

opposition, Defendant argues that the demand for destructive testing is unnecessary and redundant since Plaintiff has already conducted two nondestructive examinations and the test is not essential to resolve a genuinely disputed material issue. (Opp., p. 2.) Defendant argues that the cause of the explosion was an electrical panel, not the meter. (Ibid.) Further, Defendant argues that destructive testing will permanently destroy unique and

central evidence resulting in prejudice by not allowing Defendant to subsequently examine the Meter. (Ibid.) Defendant then turns to argue against Plaintiff's purported expert, Dr. Palmer, who advocated for destructive testing. (Mot., p. 6.) Defendant argues that their expert, Dr. Pena, has far more experience and maintains that CT scan provided enough information to aid in the causation inquiry without causing the significant prejudice of destructive testing. (Mot., pp. 6-7.) Defendant also points out that the electrical panel has not been tested. (Mot., p. 7.) Thus, Defendant argues Plaintiff has not shown good cause for destructive testing. (Mot., p. 9.)

In reply, Plaintiff reiterates that the standard is relevance and good cause, not a showing that the method of testing is essential and the last resort. (Reply, p. 1.) Plaintiff also disputes Defendant's argument that the CT scan can provide everything the destructive test can provide. (Ibid.) Lastly, Plaintiff argues that Defendant's attack on Dr. Palmer's credibility is legally irrelevant since it is based on an opinion provided on another case eight years ago based on a completely different set of facts and circumstances. (Reply, p. 5.) In that case, parties sought destructive testing of a drill when the explosion occurred in conduction system called a "bus duct" and did not originate in the drill. (Ibid.) Further, Plaintiff argues credibility and qualifications of experts are for the jury to decide, not a basis to deny discovery. (Ibid.)

Here, the Court is inclined to agree with Plaintiff. The court finds testing relevant to the subject matter of the action. The Court finds that physical examination of the Meter's internal pieces and patterns is relevant to the cause of the explosion because it is disputed where the explosion originated from. While Defendant primarily denies that the explosion originated from the Meter, Defendant also maintains that the Meter is central evidence. (Opp., p. 2.) The cause of the explosion is still at issue, and a test examining the internal workings of the Meter accused of causing the fire is directly relevant.

Further, the Court finds that the destructive testing appears reasonably calculated to lead to the discovery of admissible evidence. Dr. Palmer describes, investigating soot deposits, thermal discoloration, and physical results of the explosion not apparent on CT scan would be beneficial to the factual inquiry. (Palmer Decl., ¶ 15.) Dr. Pena confirms CT scans can create a 3-D physical rendering including structures,

wall thickness, and possible defects. (Pena Decl., ¶ 6.) However, the Court finds that evidence including soot deposits and thermal discoloration are helpful to the inquiry. Further, the Court finds Defendant's attempt to attack Dr. Palmer's position unfounded as it was based on an entirely different case with unique and different facts.

Accordingly,

Plaintiff's motion to compel destructive testing is GRANTED.

Sanctions

"The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel further response to a demand, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (Code Civ. Proc., § 2031.310(h).)

"A request for a sanction shall, in the notice of motion, identify every person, party, and attorney against whom the sanction is sought, and specify the type of sanction sought. The notice of motion shall be supported by a memorandum of points and authorities and accompanied by a declaration setting forth facts supporting the amount of any monetary sanction sought." (Code Civ. Proc., § 2023.040.)

Defendants'

failure to comply with discovery requests necessitated the motion, and the conduct is subject to sanctions. (See Code Civ. Proc., § 2033.280(c); see also Cal. Rules of Court, Rule 3.1348(a).) Moreover, The Court finds Plaintiff's Notice of Motion complies with Code of Civil Procedure section 2023.040.

Plaintiff

requests sanctions in the amount of \$2,500 reflecting 5 hours at a rate of \$500 per hour. (Mot., p. 8; Norris Decl., ¶ 11.) This time was spent reviewing Defendant's objections, meeting and conferring, and preparing for the instant motion. (Norris Decl., ¶ 11.)

Here, the Court

in its discretion will reduce sanctions to \$1,000, reflecting 2 hours at a rate

of \$500 per hour.

Accordingly, the
Court GRANTS Plaintiff's request for imposition of sanctions against Defendant in
the amount of \$1,000.

CONCLUSION
AND ORDER

Plaintiff Virgel
Standfill's motion to compel destructive testing is GRANTED.

Plaintiff's
request for sanctions is GRANTED in the amount of \$1,000, to be paid by
Defendant to Plaintiff 30 days from this ruling

MOVING PARTY to
provide notice of this order.